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|     |                                                                            | <p>proposes a new realistic Final Approval hearing date in light of the further continuance of this preliminary approval motion.</p> <p>Class Counsel must file supplemental papers addressing the Court's concerns no later than (9) court days prior to the continued hearing date. Counsel must also provide red-lined versions of all revised papers and an explanation of how the pending issues were resolved with precise citation to any corrections or revisions. A supplemental declaration or brief that simply asserts the issues have been resolved is insufficient and will result in a further continuance.</p> <p>Plaintiff is ordered to give notice of this Court's ruling, including to the LWDA, within five (5) court days, and file proof of service.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| 105 | <p><b>Lemus vs. Tustin Buick GMC, Inc.</b></p> <p><b>2024-01393192</b></p> | <p><b>Motion for Approval of PAGA Settlement</b></p> <p>The Court has reviewed the supplemental materials provided by Plaintiff's Counsel and finds that they adequately address the previously identified issues. Plaintiff Felipe Lemus's Motion for Approval of PAGA Settlement is <b>CONDITIONALLY GRANTED</b>, pending the resolution of one additional issue identified below.</p> <p>This is a PAGA-only action. On 4/12/2024, Plaintiff Felipe Lemus filed a PAGA complaint against Defendant Tustin Buick GMC, Inc., alleging a single cause of action for PAGA civil penalties. (ROA #2.) Defendant answered on 6/3/2024. (ROA #19.)</p> <p>On 9/3/2025, Plaintiff filed the instant Motion for Approval of PAGA Settlement, and submitted for the Court's review the Private Attorney General Act (Labor Code § 2698 <i>et seq.</i>) Settlement Agreement and proposed notice/cover letter to aggrieved employees that will accompany the payment to them. The motion seeks approval of the parties' proposed settlement of Plaintiff's PAGA claims for the non-reversionary gross settlement amount (GSA) of \$245,000.</p> <p>At the first hearing on the Motion on 1/29/2026, the Court concluded that an attorneys' fee award totaling \$73,500 or 30% of the GSA, constituting a 1.44 multiplier of the lodestar amount, is fair, adequate, and reasonable for a settlement of this size, including considering the action's contingent nature and the results achieved. (ROA #65.) The Court also concludes that litigation costs should not include overhead or nonrecoverable items such as postage, and deducted from the requested amount \$18.12 for claimed postage. (<i>Id.</i>) The Court continued the Motion and asked Plaintiff's Counsel to address various issues. (<i>Id.</i>)</p> |

Counsel has submitted supplemental materials, including an Amended Private Attorneys General Act (Labor Code § 2698 *et seq.*) Settlement Agreement ("Amended Settlement Agreement") and an amended notice/cover letter to aggrieved employees that will accompany the payment to them.

Based on a review of all submissions made in support of the motion, including counsel's submission of Plaintiff's Individual Settlement Agreement for the Court's in camera review, the Court finds the settlement is fair and reasonable.

However, in reviewing the moving papers, it appears that Plaintiff's counsel has not yet attested to whether there are any concurrent pending cases involving similar claims against Defendant that may be impacted by the settlement and how, or confirm that there is none. **Accordingly, Plaintiff's counsel must submit within five (5) court days a supplemental declaration addressing this issue.**

Upon resolution of this issue to the Court's satisfaction, the Court will grant the Motion and approve the following disbursements and awards from the Gross Settlement Amount:

- Attorneys' fees totaling \$73,500.00 awarded to Plaintiff's Counsel, Gaines Law Corporation;
- Litigation costs totaling \$13,644.00 awarded to Plaintiff's Counsel, Gaines Law Corporation; and
- Settlement administration costs of \$4,000.00 awarded to ILYM Group, Inc.

PAGA penalties in the amount of \$153,856.00 shall be allocated as follows: seventy-five percent (75%), or \$115,392.00, payable to the Labor and Workforce Development Agency (LWDA); and twenty-five percent (25%), or \$38,464.00, payable to the Aggrieved Employees in accordance with the terms of the Amended Settlement Agreement.

**The Final Accounting hearing is set for 4/8/2027 at 2:00 p.m. in Department CX102.** Plaintiff's Counsel must submit the settlement administrator's final report regarding distribution of the settlement funds at least sixteen (16) court days prior to the hearing regarding the status of the settlement administration. The final report must include all information necessary for the Court to determine the total amount actually paid to Aggrieved Employees, the number of uncashed settlement checks, and the total amount of any unclaimed funds remitted to the State Controller's Office Unclaimed Property Fund. If the unclaimed funds are not fully disbursed by the report deadline, counsel must request a continuance of the Final Accounting hearing.

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|  |  | <p>Plaintiff to give notice, including to the LWDA, of this ruling, and file proof of service within five (5) calendar days of the date the Order and Judgment is entered.</p> |
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